

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff attached the particular facts at issue ("Set One"), numbered One through Eight, in Attachment One of Exhibit One to their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to counsel for Defendant at the address listed on Defendant's Answer.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Set One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

CASE NAME: WELLS FARGO BANK, N.A. VS. SALLIE KNOWLTON

***HEARING ON MOTION IN RE: MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED FILED BY PLN ON 11/24/25**

FILED BY:

TENTATIVE RULING:

Background

The court dismissed this case on 5/26/26, at the request of the Plaintiff.

This Motion is moot.

Disposition

This matter is vacated.

6. 9:00 AM CASE NUMBER: L25-05587

CASE NAME: CITIBANK N.A. VS. BERTHA HERNANDEZ

***HEARING ON MOTION FOR DISCOVERY FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED**

FILED BY: CITIBANK N.A.

TENTATIVE RULING:

Background

Plaintiff filed an Amended Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), on 3/11/26.

Plaintiff attached the particular facts at issue, numbered One through Eight and entitled, "Set One," in Exhibit One of their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed